

Mohd. Asif v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 March 2018 · Writ-C No. 8328 of 2018 · **Writ dismissed; liberty to avail clause 6.5 for the bill dispute.**

HEADNOTE

A writ petition disputing the correctness of an electricity consumption bill is not maintainable where clause 6.5 of the Electricity Supply Code, 2005 affords a statutory alternative remedy before the competent authority. The High Court dismissed the petition with liberty to pursue that remedy.

FACTUAL SUMMARY

Mohd. Asif filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and three others, challenging the correctness of a bill raised for consumption of electrical energy. The petition was listed before a Division Bench. The Court did not examine the billing figures or the underlying supply facts. It noted that the grievance was confined to the amount of the electricity bill and that the Electricity Supply Code, 2005 itself provided a forum for such disputes. No other controversy was placed before the Court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill dispute — statutory alternative remedy

HOLDING

Where the consumer disputes the correctness of a bill for consumption of electrical energy, clause 6.5 of the Electricity Supply Code, 2005 provides a statutory alternative remedy before the competent authority, and the High Court will not interfere in writ jurisdiction. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY CONSUMPTION BILL

Writ dismissed for alternative remedy; the bill was not examined on merits. ¶ 1